

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA**

**STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,
Petitioner,**

vs.

Complaint No. 2023-LPC-301

**DESTINY RAMMING,
LPC, LICENSE NO. 11042
Respondent.**



CONSENT ORDER

The State of Oklahoma, ex rel, the State Board of Behavioral Health Licensure ("the Board") by and through its attorney, Liz Stevens, Assistant Attorney General, and Destiny Ramming ("Respondent"), and hereby enter into this Consent Order, pursuant to 59 O.S. §1912(A) of the Licensed Professional Counselors Act, 86:10-29-3(b)(2)(C) of the Oklahoma Administrative Code, and 75 O.S. §309(E) of the Administrative Procedures Act. For the purposes of this Consent Order, the following facts are hereby stipulated to by the parties and adopted by the Board:

STIPULATION OF FACTS

1. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 11042 and was licensed on or about October 7, 2022.
2. On or about April 10, 2023, the Board received a Request for Inquiry ("RFI") alleging Respondent produced a falsified Emotional Support Animal ("ESA") letter for a coworker (hereinafter "T.P."). The Board assigned the RFI to Attorney General Agent Tony Blasier for investigation.
3. The complaint alleged that Respondent's employer found an ESA letter on her desk

after her termination. The letter read that T.P. had been Respondent's client since August 12, 2021, and Respondent had prescribed an emotional support animal for T.P. The letter was dated December 16, 2021 and signed by Respondent. Respondent denies ever having T.P. as a client.

4. During the investigation, Respondent told Agent Blasier that T.P. had given her an ESA letter to use as an example for a client. Respondent informed Agent Blasier that she retyped the letter on her employer's letterhead and put her name and credentials at the bottom. She left all of T.P.'s information in the body of the letter. Respondent told Agent Blasier that she couldn't remember if she printed it out and signed it, but it was possible. She also informed Agent Blasier that she couldn't remember if she gave a copy to T.P., but that was possible too.

5. Respondent acknowledges that she failed to take adequate measures to prevent the example ESA letter from being used by T.P. for T.P.'s personal use and that Respondent's conduct allowed and/or enabled T.P. to use Respondent's example ESA letter for T.P.'s personal use.

6. Pursuant to a subpoena served on Luxe Property Management, LLC, T.P.'s apartment management company, the exact ESA letter that was found on Respondent's desk was provided to Luxe Property Management by T.P.

7. In order to resolve all issues raised in the Request for Inquiry filed in this matter, the parties agree to the below Agreed Conclusions of Law and Agreed Order.

AGREED CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. §1905(B)(4) of the Licensed Professional Counselors Act.

2. Pursuant to 59 O.S. §1912(A)(5) of the Licensed Professional Counselors Act, the Board has the authority to deny, revoke, suspend, or place on probation any license if that license holder has engaged in fraud or deceit in connection with services rendered or engaged in wrongful

actions in the performance of his or her duties.

3. Pursuant to 59 O.S. §1913.1(B), the Board has the authority to impose an administrative penalty not to exceed ten thousand dollars (\$10,000) on any person who is determined to have violated any provision of the Licensed Professional Counselors Act or any rule promulgated, or order issued pursuant thereto.

4. Respondent agrees that she did not comply with the Licensed Professional Counselor Act nor the Oklahoma Administrative Code. Respondent violated the following:

86:10-3-5(a). Misrepresentation

LPCs shall not misrepresent nor allow the misrepresentation by others of the efficacy of the LPC's professional services

86:10-3-1. Responsibility

It shall be the responsibility of LPCs, in their commitment to the understanding of human behavior, to value objectivity and integrity, and in providing services, to strive to maintain the highest standards of their profession. LPCs shall accept responsibility for the consequences of their work and make every effort to ensure that their services are used appropriately. LPCs shall be alert to personal, social, organizational, financial, and political situations or pressures that might lead to the misuse of their influence. LPCs shall not participate in, condone, or be associated with dishonesty, fraud, deceit or misrepresentation. LPCs shall not exploit their relationships with clients for personal advantage, profit, satisfaction, or interest.

AGREED ORDER

The Board and Respondent agree to the following Order:

1. Respondent will pay a three thousand dollar (\$3,000.00) administrative penalty with one thousand dollars (\$1,000.00) to be paid on or before April 15, 2024 and the remaining two thousand dollars (\$2,000.00) to be paid on or before July 15, 2024.

2. Respondent will participate in a graduate level Board approved ethics course. To be in compliance with this Order, Respondent will have to provide proof of successful completion of the course by June 1, 2025.

3. Respondent understands and agrees that should any future instances be brought to the attention of the Board in which Respondent has violated the Licensed Professional Counselor Act or the Oklahoma Administrative Code, the Board reserves the right to prosecute such violations and to consider this Consent Order as a factor in the determination of any sanctions and penalties, if any, should the Board determine that any violation has occurred.

4. Failure to comply with any of the terms of this Order may result in further disciplinary action against Respondent, including, but not limited to, the suspension or revocation of Respondent's license.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order and all associated documentation becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed to and executed by Respondent. The Consent Order shall not become effective until it has been approved by a majority of the Board and endorsed by a representative of the Board.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the Board Meeting scheduled for April 12, 2024. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the Complaint against Respondent may be held.

If the Consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against her at the subsequent disciplinary hearing. Respondent will be free to defend herself and no inferences will be made from her willingness to have entered into this agreement. It is agreed that neither

the presentation of the Consent Order nor the Board's consideration of the Consent Order will be deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in this Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of her rights to contest the allegations pending against her. Respondent acknowledges these rights include: representation by an attorney at her own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify against her; the right to present evidence on her own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on her own behalf; the right to receive written findings of fact and conclusions of law supporting the decision on the merits of the Complaint and the right to obtain judicial review of the Board's decision. Respondent in exchange for the Board's acceptance of this Consent Order voluntarily waives all of these rights.

COMPLETE AGREEMENT

This Consent Order consists of six (6) pages and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.

Amy Barnett

AMY BARNETT, LPC CC Board Member

Dated this 12th day of April, 2024.

**IT IS SO ORDERED.
STATE BOARD OF BEHAVIORAL HEALTH LICENSURE**

By: Thomas Friedman, Esq., LSC
BOARD MEMBER

Dated this 11 day of April, 2024.

I have read the entirety of this Consent Order. I understand that by its terms I waive certain rights accorded me under Oklahoma law. I agree to this Consent Order:

Destiny Ramming
Destiny Ramming, Respondent

Dated this 11 day of April, 2024.

Alexandra G. Ah Loy
**Alexandra G. Ah Loy, OBA NO. 31210
Attorney for Respondent**

Dated this 11 day of April, 2024.

CERTIFICATION OF BOARD ATTORNEY

I believe this Consent Order to be in the best interests of the State Board of Behavioral Health Licensure and the State of Oklahoma for the violations as outlined in the foregoing Consent Order.

Liz Stevens
LIZ STEVENS, OBA NO. 34185
Assistant Attorney General
State of Oklahoma
313 N.E. 21st Street
Oklahoma City, Oklahoma 73105
(405) 522-4398; FAX (405) 522-4536

Dated this 12 day of April, 2024.

**ATTORNEY FOR THE STATE OF OKLAHOMA
STATE BOARD OF BEHAVIORAL HEALTH**